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A. Purpose

The Immigration and Nationality Act (INA) and implementing regulations provide for several employment-based immigrant visa classifications. Alien beneficiaries approved in these classifications are eligible to apply for lawful admission as a permanent resident or adjustment of status to permanent residence.

B. Background

In general, for an Immigrant Petition for Alien Workers ([Form I-140](#)), a petitioner must demonstrate to USCIS that the beneficiary is qualified for the immigrant classification sought.^[1] If the petition is based on an underlying approved permanent labor certification application, then the petition must be filed during the validity period of the permanent labor certification established by the U.S. Department of Labor (DOL).

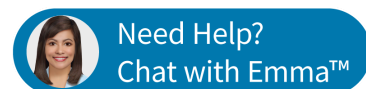
The petitioner must demonstrate that the beneficiary is qualified for the position certified by DOL. However, as discussed in more detail later in this part, there are several immigrant classifications that do not require the petitioner to first obtain a permanent labor certification. In addition, in certain classifications, the beneficiary is able to self-petition for the classification sought.

General information relating to employment-based immigrant petitions is provided in Part E.^[2] This Part F provides a more detailed discussion of the specific immigrant classifications.

Visa Classifications

The following table lists the employment-based immigrant visa classifications, the corresponding codes of admission, and where to find additional guidance about the classifications.

Employment-Based Visa Classifications



Employment-Based Immigrant	Code of Admission	For More Information
Persons of Extraordinary Ability	E11	See Chapter 2, Extraordinary Ability [6 USCIS-PM F.2]
Outstanding Professor Outstanding Researcher	E12	See Chapter 3, Outstanding Professor or Researcher [6 USCIS-PM F.3]
Multinational Executive Multinational Manager	E13	See Chapter 4, Multinational Executive or Manager [6 USCIS-PM F.4]
Professional Holding Advanced Degree Person of Exceptional Ability	E21	See Chapter 5, Advanced Degree or Exceptional Ability [6 USCIS-PM F.5] and Chapter 6, Physician [6 USCIS-PM F.6]
Skilled Worker	E31	See Chapter 7, Skilled Worker, Professional, or Other Worker [6 USCIS-PM F.7]
Professional Holding Baccalaureate Degree	E32	See Chapter 7, Skilled Worker, Professional, or Other Worker [6 USCIS-PM F.7]
Other Worker	EW3	See Chapter 7, Skilled Worker, Professional, or Other Worker [6 USCIS-PM F.7]

C. Legal Authorities

- [INA 203\(b\)\(1\),\(2\),\(3\)](#) – Preference allocation for employment-based immigrants
- [8 CFR 204.5](#) – Petitions for employment-based immigrants
- [20 CFR 656](#) – Labor certification process for permanent employment of aliens in the United States

Footnotes

[[1](#)] This Part generally uses the simplified terms petition, petitioner, and beneficiary. The term petition refers to the Immigrant Petition for Alien Workers ([Form I-140](#)). The term petitioner generally refers to the petitioning employer,

though in some circumstances the petitioner may be a self-petitioning alien. The term beneficiary refers to the alien who is the beneficiary of the petition, who in some cases may also be a self-petitioner.

[\[^2\]](#) See Part E, Employment-Based Immigration [\[6 USCIS-PM E\]](#).

Current as of December 22, 2025
